ORDINANCE NO. 7,939-N.S.

ORDINANCE AUTHORIZING EXCHANGE OF REAL PROPERTY FOR DEVELOPMENT OF ASHBY BART STATION PROPERTY

BE IT ORDAINED, by the City Council of Berkeley, as follows:

Section 1. Purpose and Intent.

The purpose and intent of this Ordinance is to authorize, approve, and implement an agreement for the exchange of real property at the site of the Ashby BART Station, to further the development of the property in a manner that will, among other objectives that serve the interests of the people of Berkeley, increase the number of affordable housing units in the City of Berkeley in accordance with applicable City-adopted housing plans.

Section 2. Findings.

A. The City of Berkeley, a California charter city ("City") and the San Francisco Bay Area Rapid Transit Authority, a California rapid transit district ("BART") share a desire to transform the current surface parking lots at the Ashby BART Station ("Parking Lots") to a transit-oriented development that will provide much needed housing (including affordable housing), enliven Adeline Street, and benefit the surrounding community, while continuing to ensure access to the Ashby BART Station. The City and BART each have an interest in having this area developed with high density use, to maximize the amount of new housing and to enhance transit ridership.

B. The Parking Lots consist of the BART-owned parking lot on the westerly side of the BART Station, bounded by Ashby Avenue, Martin Luther King, Jr. Way, and the BART Station, Assessor Parcel Number 053-1597-039-04 ("West Lot"), and the BART-owned parking lot on the easterly side of the Bart Station bounded by Woolsey Street, Tremont Street, and the Ed Roberts Campus, Assessor Parcel Number 053-1703-009 ("East Lot").

C. BART is the fee simple owner of the West Lot and the East Lot. The City holds an option to purchase the air rights above the West Lot in accordance with the unrecorded "Agreement Dated October 22, 1964 Between the San Francisco Bay Area Rapid Transit District and the City of Berkeley" as amended ("Air Rights Option").

D. The development plans for the West Lot include improvements within the BART Right-of-Way area identified as "R9-2" in the "Record Maps of Right of Way Bay Area Rapid Transit District Alameda County" dated December 1, 1964 and recorded on September 20, 1971 at Book 68 of Maps, pages 122-146, in the Official Records of Alameda County, California ("R9-2 Parcel"). The R9-2 Parcel encompasses a portion of the Adeline Street public right-of-way along the easterly boundary of the West Lot.

E. To implement the development of the West Lot and East Lot, the City and BART have prepared the "Ashby BART Station Transit-Oriented Development Exchange Agreement"